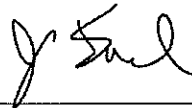


FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, June 26, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26897 against Police Officer Edgar Rivera, Tax Registry No. 955381. The case was conferenced on April 18, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of Command Discipline Schedule (B) with the forfeiture of EIGHT (8) vacation days. However, the calculation of penalty days was incorrect. This case was re-conferenced on June 20, 2023, before Assistant Deputy Commissioner of Trials, Jeff Adler to correct the record regarding the plea. Assistant Deputy Commissioner Adler approved the corrected negotiated penalty of Command Discipline Schedule (B) with the forfeiture of EIGHT (8) vacation days. The Charges and Specifications will be dismissed for plea purposes.



Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26897
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RIVERA	FIRST EDGAR	M.I. H	COMMAND 052 PRECINCT
SHIELD NO. 5576	TAX REGISTRY NO. 955381	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Edgar RIVERA, on or about April 26, 2021, at approximately 0300, while assigned to 052 PCT and on duty, in the vicinity of Marble Hill Avenue and West 230th Street, Bronx County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 8.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2 . Police Officer Edgar RIVERA, on or about April 26, 2021, at approximately 0300, while assigned to 052 PCT and on duty, in the vicinity of Marble Hill Avenue and West 230th Street, Bronx County, abused his authority as a member of the New York City Police Department, in that he searched the vehicle in which § 87(2)(b) was an occupant without sufficient legal authority.	DISMISSED	
3 . Police Officer Edgar RIVERA, on or about April 26, 2021, at approximately 0300, while assigned to 052 PCT and on duty, in the vicinity of Marble Hill Avenue and West 230th Street, Bronx County, was discourteous to § 87(2)(b) in that he	DISMISSED	


FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

10/13/23
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.

2022-26897

BOOK & PAGE NO.

Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RIVERA	FIRST EDGAR	M.I. H	COMMAND 052 PRECINCT
SHIELD NO. 5576	TAX REGISTRY NO. 955381	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
stated in sum and substance," now you going to talk shit" and "Now you gonna be an asshole", without police necessity. 4 . Police Officer Edgar Rivera, on or about April 26, 2021, at approximately 0300, while assigned to 052 PCT and on duty, in the vicinity of Marble Hill Avenue and West 230th Street, Bronx County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	DISMISSED	

DC Bruna
FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

10/13/23
DATE

THIRD ENDORSEMENT

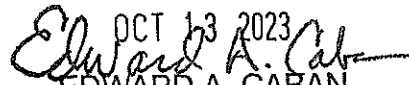
First Deputy Commissioner to Police Commissioner September 29, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26897 against Police Officer Edgar Rivera, Tax #955381, with the recommendation that the Charges and Specifications against Police Officer Rivera be dismissed. It is further recommended that Police Officer Rivera receive a Schedule "B" Command Discipline and forfeit eight (8) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

TIK/pk



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

OCT 13 2023

EDWARD A. CABAN
POLICE COMMISSIONER